03 — Privacy policy

Français (version de référence) : ../fr/03-politique-confidentialite.md

> **TEMPLATE — DO NOT PUBLISH AS IS.** To be completed and validated (lawyer, data protection officer). The version published on the website (`website/src/pages/en/privacy.html`) must be aligned with this text once validated.

Header	
Jurisdiction	DRC — Digital Code, Book III
Assumptions	H-01, H-03, H-04, H-05, H-08, H-13, H-15
Sources	S01, S02, S03, S04, S07, S16 — see 00-legal-research.md § 7
Clauses to validate	V-05, V-07, V-08, V-13
Version	[NUMBER] of [DATE]

1. Who is responsible

[COMPANY NAME], [LEGAL FORM], RCCM [RCCM], registered office [ADDRESS] (“Nhill”, “we”). Data protection contact: [DPO E-MAIL]. Data protection officer: [NAME or “not appointed — reason”] **[TO VALIDATE: V-13]**.

This policy covers: website visitors, people who fill in a form, customers and their users (accounts), people who write to support.

It does not cover the data each business records in Nhill about its own customers, suppliers and employees: the business is responsible for it and Nhill processes it on the business’s behalf (data processing agreement, template 06).

2. Data, purposes, legal bases, retention

Processing	Data	Purpose	Legal basis [TO VALIDATE]	Retention
Website forms (demo, pilot, partnership, question)	name, organisation, e-mail, phone, city, sector, message, consent choices	answer the request	pre-contractual steps / consent	[12] months after the last exchange (setting `SITE_RETENTION_DAYS`)
Protecting the website against abuse	non-reversible HMAC fingerprint of the IP address, browser type	security, rate limiting	legitimate interest	[30] days for the fingerprint
News and offers (if box ticked)	e-mail, name, date and wording of consent	prospecting	**prior consent** (Digital Code art. 68–72)	until withdrawal, then [3] years as proof of withdrawal
User accounts	name, e-mail, phone, language, role, hashed password (Argon2id), sessions	provide the Service, security	performance of the contract	account lifetime + [12] months

Processing	Data	Purpose	Legal basis [TO VALIDATE]	Retention
Security and audit log	actions, date, IP address, device	security, evidence, fraud prevention	legal obligation / legitimate interest	[12] months **[TO VALIDATE: V-07]**
Subscription billing	business identity, legal identifiers, payments	invoicing, accounting	legal obligation	10 years (accounting records, OHADA)
Support	messages, attachments, masked technical errors	answer, fix	performance of the contract	[24] months after closing
Operating statistics	aggregates per business (counts, volumes per currency, active users)	run and improve the Service	legitimate interest	[24] months

Nhill does not sell personal data and does no advertising profiling. The website sets **no cookie** and uses no third-party analytics (template 04).

3. Recipients

- authorised Nhill staff, according to their role (support, billing);
- technical processors: hosting [HOST, COUNTRY], e-mail delivery [PROVIDER or “none”], payment providers [STRIPE / PAYPAL / OTHER, COUNTRY] for payments only;
- authorities, upon lawful request.

4. Transfers outside the DRC

Data is hosted [in the DRC / in [COUNTRY] by [HOST]]. Hosting outside the DRC is an international transfer regulated by the Digital Code; Nhill carries it out after [authorisation No. [No.] of [DATE] from the data-protection authority] and with contractual safeguards. **[TO VALIDATE: V-05, H-04, H-05.]**

5. Security

Encrypted communications (HTTPS), hashed passwords, isolation of each business’s data at database level, role-based access control, audit log, encrypted backups. Summary: template 13. If a breach presents a risk, Nhill informs the authority and the people concerned within the legal deadlines (template 14).

6. Your rights

You can ask for access to your data, its rectification or erasure, object to processing based on legitimate interest, and withdraw your marketing consent at any time (unsubscribe link or message to [DPO E-MAIL]). Form: template 19. Answer within [30] days. Proof of identity may be requested if there is doubt.

You can contact the data-protection authority: [NAME AND CONTACT OF THE COMPETENT AUTHORITY — ARPTC on a provisional basis or ARPTIC, to be checked] **[TO VALIDATE: H-05]**.

7. Businesses’ employees

Nhill’s activity log records each user’s actions in the application. The employing business is responsible for this processing and must inform its staff (template 17).

8. Children

The Service is intended for businesses; it is not designed for children.

9. Changes

Any substantial change is announced on the website and in the application [30] days before it takes effect. Version history: [LINK].